

**LEGISLATIVE APPROPRIATION REQUEST
FOR FISCAL YEARS 2028 - 2029**

**SUBMITTED TO THE
GOVERNOR'S OFFICE OF BUDGET, PLANNING AND POLICY
AND THE LEGISLATIVE BUDGET BOARD**

BY

**THE TWELFTH COURT OF APPEALS
TYLER, TEXAS
AUGUST 12, 2026**

TWELFTH COURT OF APPEALS (232)
TYLER, TEXAS

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Administrator's Statement

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90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

232 Twelfth Court of Appeals District, Tyler

ADMINISTRATOR'S STATEMENT

For Fiscal Years 2028 and 2029

90th Legislature

The core function of Texas' intermediate appellate courts is to process, review, and decide by written opinion every appeal that is filed with them from trial courts, in civil and criminal cases, across numerous counties. These appeals include every substantive area of civil and criminal law—except for death penalty cases—and many of them must be decided on an expedited basis as mandated by the Legislature and the rules of appellate procedure.

The courts of appeals must also resolve a large number of original proceedings each fiscal year seeking extraordinary relief—such as a writ of habeas corpus, mandamus, prohibition, injunction, or quo warranto. Original proceedings, which are often filed during the pendency of litigation, commonly have voluminous records and must also be decided on an expedited basis. And many of them include a request for emergency temporary relief which must be addressed immediately.

Against this backdrop, Texas has gained more residents than any other state during the 21st century. Since 2000, the population of Texas has increased by more than 52%. More than 31 million people now live in Texas. And the vast majority are adults who look to the judiciary for resolution of their disputes as guaranteed by our Constitution. The Legislature has responded to this big increase population by creating nearly 200 new trial courts across Texas. And the Bench and the Bar have taken important steps to increase access to justice for all Texans.

New case filings in the courts of appeals began to return to their pre-COVID levels in fiscal year 2022. During the next three fiscal years (FY '23, FY '24, and FY '25), new case filings in the courts of appeals increased each fiscal year by between 4% to 8%. This is consistent with the increase in new cases experienced by the federal courts of appeals from 2022 to 2025 at nearly 4.4%.

This all changed for Texas' courts of appeals in fiscal year 2026. New case filings are increasing in FY '26 from FY '25 by 20%. And they are increasing by about 30% from FY '24—which is when the Legislature last met. See Administrator's Statement Exhibit #1 Table- New Cases Filed by Fiscal Year

When equalization transfers are taken into account, every court of appeals in Texas (except the 15th court which has different jurisdictional requirements) is experiencing these large increases in new case filings—which are anticipated to continue for the foreseeable future. See Administrator's Statement Exhibit #2- Table- New Cases Filed by Fiscal Year- After Transfers

Two important components of this big increase in new case filings are original proceedings and pro se appeals. Together, they constitute 54% of the new cases filed in the courts of appeals in FY '26.

Original proceedings are increasing in FY '26 from FY '25 by 49%. And they are increasing in FY '26 from FY '24 by 83%. See Administrator's Statement Exhibit- #3 Table- Original Proceedings

Meanwhile, pro se appeals are increasing in FY '26 from FY '25 by 36%. And they are increasing in FY '26 from FY '24 by 68%. See Administrator's Statement Exhibit- #3 Table- New Cases Filed by Pro Se Litigants

Yet, in the face of this dramatic growth, the number of staff attorneys (and other staff) at the courts of appeals who assist the justices with their workload has remained largely the same. A key factor in handling the increasing workload without additional justices is the employment of highly skilled and trained staff attorneys (and other

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staff). They maximize the productivity of justices by processing complex cases, researching and drafting preliminary drafts of orders and opinions, disposing of voluminous motions, and managing accelerated and emergency matters.

The large population growth across the State and the magnitude of new case filings, in concert with an ever-increasing number of case types requiring expedited review, make it clear that the courts of appeals require additional staff attorneys, and/or other staff, to manage their growing dockets and to efficiently provide the timely, high-quality justice to which all citizens of Texas are entitled.

In that regard, the courts of appeals, collectively, began in the 79th and 80th Legislative Sessions to work toward a zero-based budget model referred to as “Similar Funding for Same-Sized Courts.” This model quantified the funding required to meet the personnel and operational needs of the courts, thus enabling the courts to accomplish their core function and meet their performance measures. The Similar Funding for Same-Sized Courts initiative was fully funded for the first time in 2015, and the courts had been operating under the same zero-based budget model and funding levels until the 88th Legislative Session when the Legislature increased the budgets for the intermediate appellate courts.

Based upon a template of same-size courts, the courts of appeals are now asking the Legislature for additional staff attorneys, and/or other staff, to match the nearly 30% increase in new case filings since FY '24—subject to the particularized request of each court of appeals. See Administrator’s Statement Exhibit #4- Template of Same-Sized Courts.

Without a sufficient number of qualified staff attorneys, and/or other staff, the courts of appeals are largely unable to handle the increasing volume of new case filings each fiscal year and comply with Legislative mandates to give accelerated and preferential treatment to certain appeals (such as parental-termination and juvenile-certification appeals under the Family Code, mental-health appeals under the Health and Safety Code, and interlocutory appeals under the Civil Practice and Remedies Code) and also comply with the legislatively mandated Clearance Rate requirement.

The courts of appeals are appreciative of the increased funding for existing staff attorneys received last session. It is important and enables the courts of appeals to hire and retain qualified individuals for their existing staff attorney positions, and other staff. The courts of appeals are now faced with the need to increase the number of their staff attorney positions, and/or other staff, in order to keep pace with the growth of Texas and the large increase in new case filings. But they currently lack the funding to do so.

And now the courts of appeals have been instructed to reduce their base appropriation request for the 2028-29 biennium by 3%. Unlike other state agencies, 96.5% of each court of appeals’ budget, on average, is dedicated to salaries and benefits. This budget reduction would thus result in a disproportionate and highly negative impact on the courts of appeals. The only way to absorb such a budget reduction is to cut court staff. This is counter-intuitive and unsustainable in light of the substantial increase in new case filings. Additionally, there is virtually no benefit to the State from a 3% budget cut on the courts of appeals. Indeed, funding for all of the courts of appeals comprises less than 0.04% of the State budget as a whole. And a 3% budget cut on the courts of appeals would approximately yield only a 0.002% reduction in the entire State budget.

Mindful of that, and of the critical role that the courts of appeals perform for all Texans, additional funding for additional staff attorneys, and/or other staff, as specifically requested by each court of appeals, is now necessary for the courts of appeals to ensure the efficient and timely administration of justice going forward.

EXCEPTIONAL ITEM #1: RESTORE THE 3% BUDGET CUT.

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To address the highly negative and disproportionate impact of the required 3% reduction on the courts' funding, especially in light of the substantial increase in new case filings in Fiscal Year '26, the courts of appeals—including the Twelfth Court of Appeals—respectfully submit Exceptional Item #1 requesting the restoration of the 3% budget reduction so that their baseline funding will be the Fiscal Year 2027 budgeted levels.

Specifically, for the Twelfth Court of Appeals, the 3% budget reduction equals \$139,337. For all the reasons detailed herein, the Twelfth Court of Appeals respectfully requests that this 3% reduction be restored back to its General Revenue funding—in the specific amount of \$139,337.

EXCEPTIONAL ITEM #2: ADDITIONAL FULL TIME STAFF ATTORNEYS AND ADMINISTRATIVE CLERK DUE TO THE SUBSTANTIAL INCREASE IN NEW CASE FILINGS.

Due to the substantial increase in new case filings that the courts of appeals are experiencing in FY '26, and which are expected to continue for the foreseeable future and based on the template of same-size courts, the 12th Court of Appeals respectfully submits its Exceptional Item # 2 in which it requests funding for 2 additional full time staff attorneys and 1 full time administrative clerk.

These additional staff attorneys and administrative clerk are necessary because the Twelfth Court of Appeals has experienced a 21% increase in new case filings from FY '25 to FY '26. And a 10% increase from FY '24 to FY '26. These increases are beyond the current capacity of the Twelfth Court of Appeals to handle and comply with the Legislative mandates to give accelerated and preferential treatment to certain appeals (such as parental-termination and juvenile-certification appeals under the Family Code, mental-health appeals under the Health and Safety Code, and interlocutory appeals under the Civil Practice and Remedies Code) and also comply with the legislatively mandated Clearance Rate requirement.

See Administrator's Statement Exhibit #5 - Spreadsheet of Additional Full-Time Staff Attorneys for the break-down of the total anticipated expense for these requested FTEs in Biennium 2028-29 for the Tenth Court of Appeals.

EXCEPTIONAL ITEM #3: RECRUITMENT AND RETENTION OF JUDICIAL-BRANCH STAFF.

Recruiting and retaining excellent judicial-branch staff is essential to the fair and efficient administration of justice in Texas. The rising cost of living combined with the draw of more lucrative employment at other government agencies and the private sector continue to create staffing challenges for the courts. The courts of appeals join with the Supreme Court of Texas and the other Article IV courts and agencies in requesting a 3% annual increase in staff pay throughout the Article IV courts and agencies in Fiscal Year '28 and also in Fiscal Year '29 to help maintain the judicial branch's position in the competitive market for talented, qualified, and experienced lawyers and other staff. The 12th Court of Appeals, in conjunction with the rest of the judicial branch, therefore, requests a 3% increase in staff salaries in Fiscal Year '28 and an additional 3% increase in Fiscal Year '29.

SPECIAL PROVISIONS/RIDER EXCEPTION REQUESTS:

The courts of appeals also request the following regarding the SPECIAL PROVISIONS – JUDICIARY found in Article IV (beginning at p. IV-42 of the General Appropriations Act for the 2026-27 Biennium) concerning across-the-board riders:

1. Retain Special Provisions – Judiciary, Sec. 3, Appellate Court Exemptions pertaining to the following Article IX riders: Section 6.10, Limitations on State Employment Levels, Section 6.13, Performance Standards, Section 14.03, Transfers – Capital Budget, and Section 3.04, Scheduled Exempt Positions.

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2. Retain Special Provisions – Judiciary, Sec. 5, Interagency Contracts for Assigned Judges for Appellate Courts

3. Retain Special Provisions – Judiciary, Sec. 6, Appellate Court Transfer Authority

Historically, the Legislature has granted the courts' exemption from certain limitations in the General Appropriations Act. The Legislature has also granted the courts the authority to carry over unexpended budget balances between years within the biennium. The flexibility afforded by these measures enhances the courts' management ability, and we seek continuation of these budget features.

4. Add Special Provision – Traveling Justices and Judges and Mileage Reimbursement

Appellate court justices and judges that travel for official state business in a personal vehicle should be exempt from the requirement to complete a comparison worksheet showing that mileage reimbursement for travel in a personal vehicle is more cost-effective than the use of a rental car (as is currently the case for children's court and business court state who travel regularly for official state business). (See Article IV Appropriation for OCA, Texas Judicial Council – Item No. 7 entitled "Mileage Reimbursement for Children's Courts and Business Court Staff).

ADDITIONAL STATEMENTS OF SUPPORT:

In order for the courts of appeals to function efficiently, it is vital that the Office of Court Administration (OCA) be adequately funded. The courts of appeals rely on many of the services provided by OCA and, therefore, the courts of appeals fully support the exceptional items the OCA requests as part of its funding. More specifically, the courts of appeals strongly support the request for funding related to the acquisition of a new appellate case management system to replace the current system known as TAMES as well as a case-level data system.

If the Legislature appropriates a cost-of-living increase to state employees, the courts of appeals request that all court employees be included in any such cost-of-living increase.

Finally, the courts of appeals wish to express appreciation to and support for the Judicial Compensation Commission and the Legislature's efforts to strengthen the justice system by increasing judicial salaries to attract and retain a strong judiciary. The courts of appeals request the Legislature implement the Judicial Compensation Commission's recommendations for an increase in judicial compensation.

Note: on Appropriated Receipts – At the direction of the LBB & Governor's Office, the Twelfth Court of Appeals has included appropriated receipts in the amount of \$4,000.00 reflecting reimbursement for copies of opinions and other court documents. These amounts are merely an offset for additional expenses incurred by the Court and do not constitute additional funds available for general expenditures for the Court. The amount can vary significantly from year to year.

The Twelfth Court of Appeals remains committed to the timely and impartial administration of justice in every case entrusted to the Court. Approval of this request and exceptional items will provide the resources necessary to meet the Court's growing workload while preserving the timely resolution of cases upon which the people of Texas depend.

Administrator's Statement Exhibit #1

New Cases Filed by Fiscal Year

	FY 24	FY 25	FY 26 (Projected)	Difference from FY 25 to FY26	% Difference	Difference from FY 24 to FY26	% Difference
1st/Houston	952	1,042	1,293	251	24%	341	36%
2nd/Fort Worth	1,000	1,133	1,411	278	25%	411	41%
3rd/Austin	922	940	1,193	253	27%	271	29%
4th/San Antonio	861	864	951	87	10%	90	10%
5th/Dallas	1,451	1,629	1,896	267	16%	445	31%
6th/Texarkana	253	269	275	6	2%	22	9%
7th/Amarillo	308	287	311	24	8%	3	1%
8th/El Paso	337	221	283	62	28%	-54	-16%
9th/Beaumont	408	473	568	95	20%	160	39%
10th/Waco	444	443	567	124	28%	123	28%
11th/Eastland	300	290	358	68	23%	58	19%
12th/Tyler	320	290	351	61	21%	31	10%
13th/Corpus Christi	509	552	698	146	26%	189	37%
14th/Houston	923	1,073	1,328	255	24%	405	44%
15th/Statewide	N/A	135	120	-15	-11%	N/A	N/A
Total FYTD	8,988	9,641	11,603	1,962	20%	2,615	29%

Unusual, one-month spike occurred

Administrator's Statement Exhibit #2

New Cases Filed by Fiscal Year - After Transfers

	FY 24	FY 25	FY 26 (Projected)	Difference from FY 25 to FY26	% Difference	Difference from FY 24 to FY26	% Difference	
1st/Houston	981	1,060	1,305	245	23%	324	33%	
2nd/Fort Worth	863	921	1,053	132	14%	190	22%	
3rd/Austin	732	834	879	45	5%	147	20%	
4th/San Antonio	644	782	931	149	19%	287	44%	
5th/Dallas	1,490	1,614	1,817	203	13%	327	22%	
6th/Texarkana	308	330	380	50	15%	72	23%	
7th/Amarillo	431	399	545	146	37%	114	26%	
8th/El Paso	453	319	428	109	34%	-25	-6%	Unusual, one-month spike occurred
9th/Beaumont	417	472	531	59	13%	114	27%	
10th/Waco	322	374	461	87	23%	139	43%	
11th/Eastland	325	330	411	81	25%	86	26%	
12th/Tyler	363	299	427	128	43%	64	18%	
13th/Corpus Christi	626	665	875	210	32%	249	40%	
14th/Houston	950	1,079	1,315	236	22%	365	38%	
15th/Statewide	N/A	254	244	-10	-4%	N/A	N/A	
Total FYTD	8,905	9,732	11,602	1,870	19%	2,697	30%	

Administrator's Statement Exhibit #3

Original Proceedings							Difference from FY25		Difference from FY24 to	
Court	22	23	24	25	FY 26 (projected)	to FY26	% Difference	FY26	% Difference	
1	221	176	176	186	252	66	36%	76	43%	
2	80	55	97	120	200	80	66%	103	106%	
3	144	113	122	159	261	102	64%	139	114%	
4	112	112	115	141	199	58	41%	84	73%	
5	214	228	225	297	465	168	56%	240	106%	
6	31	29	19	38	49	11	28%	30	157%	
7	59	38	40	25	23	-2	-7%	-17	-42%	
8	29	26	29	49	87	38	78%	58	201%	
9	46	56	51	49	82	33	66%	31	60%	
10	86	81	58	58	115	57	99%	57	99%	
11	48	45	30	34	39	5	15%	9	30%	
12	39	58	36	45	58	13	29%	22	61%	
13	90	97	90	115	190	75	65%	100	111%	
14	219	178	159	187	239	52	28%	80	50%	
15	N/A	N/A	N/A	32	26	-6	-18%	N/A	N/A	
Total original proceedings filed	1,418	1,292	1,247	1,535	2,286	751	49%	1,039	83%	
New cases filed	8,034	8,668	8,988	9,641	11,603					
Orig proceedings as % of new cases filed	18%	15%	14%	16%	20%					

New Cases Filed by Pro Se Litigants										
Court	22	23	24	25	FY 26 (projected)	Difference from FY25	Difference from FY 24 to			
						to FY26	% Difference	FY26	% Difference	
1	242	228	226	289	357	68	24%	131	58%	
2	198	221	267	334	439	105	31%	172	64%	
3	205	202	229	320	447	127	40%	218	95%	
4	144	151	141	201	265	64	32%	124	88%	
5	373	420	527	600	728	128	21%	201	38%	
6	42	50	39	67	95	28	41%	56	142%	
7	122	119	90	108	124	16	15%	34	37%	
8	61	66	70	62	158	96	154%	88	125%	
9	73	99	86	97	177	80	83%	91	106%	
10	144	120	118	125	191	66	53%	73	62%	
11	110	103	93	103	95	-9	-8%	2	2%	
12	77	56	77	72	92	20	28%	15	20%	
13	136	148	148	167	254	87	52%	106	72%	
14	252	246	236	321	429	108	34%	193	82%	
15	N/A	N/A	N/A	33	89	56	169%	N/A	N/A	
Total cases filed by pro se litigants	2,179	2,229	2,347	2,899	3,939	1,040	36%	1,592	68%	
New cases filed	8,034	8,668	8,988	9,641	11,603					
% of new cases filed by pro se litigants	27%	26%	26%	30%	34%					

Administrator's Statement Exhibit #4

Template of Same-Sized Courts

COURT SIZE	NUMBER OF NEW STAFF ATTORNEYS AND/OR STAFF
13 JUSTICES	9
9 JUSTICES	8
6-7 JUSTICES	6
3-4 JUSTICES	4

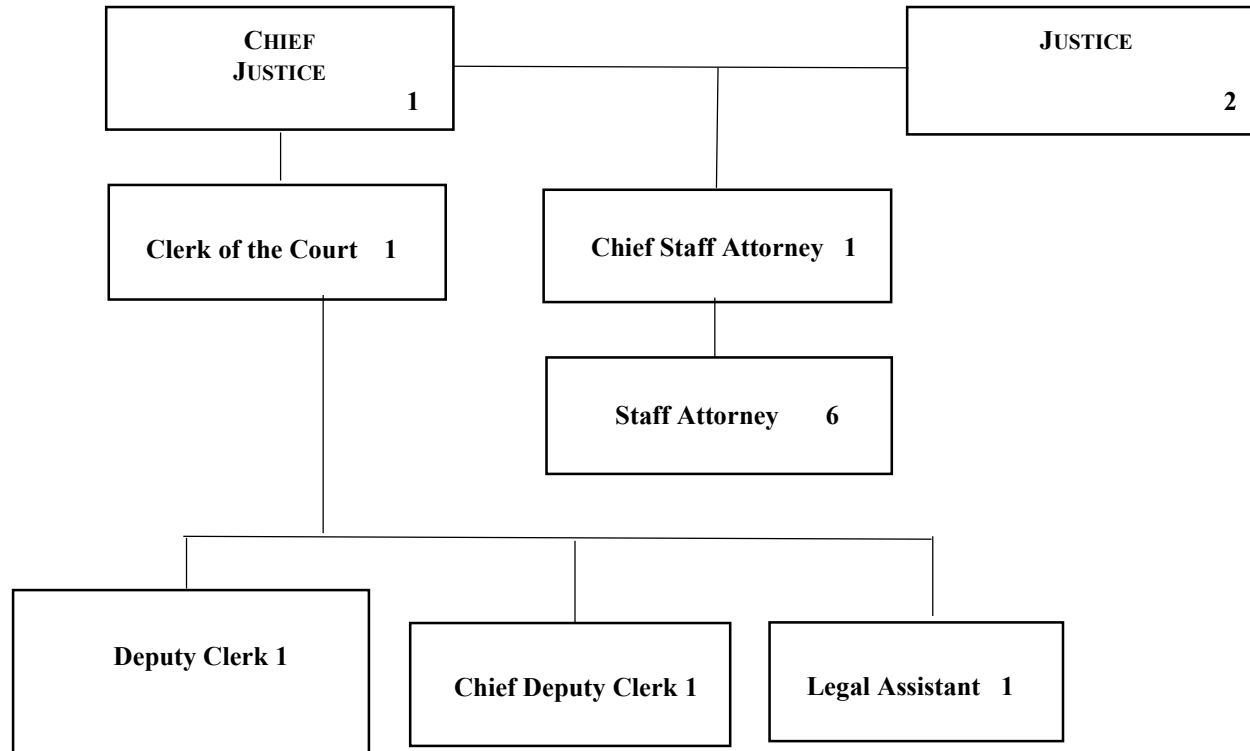
Administrator's Statement Exhibit #5

EX ITEM # 2

		FY 2028			FY 2029			Biennium		
1001		\$	301,767		\$	301,767		\$	603,534	
1002		\$	720		\$	720		\$	1,440	
2001		\$	3,000		\$	3,000		\$	6,000	
2003		\$	1,500		\$	1,500		\$	3,000	
2004		\$	-		\$	-		\$	-	
2005		\$	4,500		\$	4,500		\$	9,000	
2006		\$	-		\$	-		\$	-	
2007		\$	-		\$	-		\$	-	
2009		\$	53,492		\$	11,492		\$	64,984	
2009-IT		\$	12,018		\$	2,118		\$	14,136	
4000		\$	-		\$	-		\$	-	
		\$	376,997		\$	325,097		\$	702,094	

Item		FTE	Qty	Qty	Unit Cost	FY 2028	FY 2029	Total	OUT YEARS			
									FY 2030	FY 2031	FY 2032	
D.1.1. Texas Indigent Defense Commission												
1001	Salaries and Wages (See detail tab)	0	0			\$ 301,767	\$ 301,767	\$ 603,534	1001	\$ 301,767	\$ 301,767	\$ 301,767
1002	Other Personnel Costs (Longevity)	0	0	\$ 240		\$ 720	\$ 720	\$ 1,440	1002	\$ -	\$ -	\$ -
2001	Professional Fees					\$ 3,000	\$ 3,000	\$ 6,000	2001	\$ 3,000	\$ 3,000	\$ 3,000
2003	Consumables	0	0	\$ 500		\$ 1,500	\$ 1,500	\$ 3,000	2003	\$ 1,500	\$ 1,500	\$ 1,500
2004	Utilities	0	0			\$ -	\$ -	\$ -	2004	\$ -	\$ -	\$ -
2005	Travel					\$ 4,500	\$ 4,500	\$ 9,000	2005	\$ 4,500	\$ 4,500	\$ 4,500
2006	Rent - Building					\$ -	\$ -	\$ -	2006			
2007	Rent - Machine/Other					\$ -	\$ -	\$ -	2007	\$ -	\$ -	\$ -
2009	Other Operating Expense					\$ 53,492	\$ 11,492	\$ 64,984	2009	\$ 11,492	\$ 11,492	\$ 11,492
4000	Grants					\$ -	\$ -	\$ -	4000	\$ -	\$ -	\$ -
						\$ 364,979	\$ 322,979	\$ 687,958		\$ 322,259	\$ 322,259	\$ 322,259
A.1.2. Information Technology												
2009	Other Operating Expense (computer equipment)	0	\$ 3,300			\$ 9,900	\$ -	\$ 9,900	2009	\$ -	\$ 9,900	\$ -
2009	Other Operating Expense (licensing)	0	\$ 706			\$ 2,118	\$ 2,118	\$ 4,236	2009	\$ 2,118	\$ 2,118	\$ 2,118
2009	Video Conferencing equipment (DTEN & DIR)					\$ -						
						\$ 12,018	\$ 2,118	\$ 14,136		\$ 2,118	\$ 12,018	\$ 2,118
Total, Exceptional Item #1						\$ 376,997	\$ 325,097	\$ 702,094	\$ 324,377	\$ 334,277	\$ 324,377	
									\$ -	\$ -	\$ -	
General Revenue						\$ 376,997	\$ 325,097	\$ 702,094	\$ 324,377	\$ 334,277	\$ 324,377	
Project Total						1	1	\$ 376,997	\$ 325,097	\$ 702,094	\$ 324,377	\$ 334,277

TWELFTH COURT OF APPEALS (232)
TYLER, TEXAS
ORGANIZATIONAL CHART
2028-2029



Please Note: The number to the right of each position is the represents the budgeted positions for the 2028-2029 biennium.



CERTIFICATE

**TWELFTH COURT OF APPEALS (232)
TYLER, TEXAS**

This is to certify that the information contained in the agency Legislative Appropriation Request filed with the Legislative Budget Board (LBB) and the Governor's Office of Budget, Planning and Policy (GOBPP) is accurate to the best of my knowledge and that the electronic submission to the LBB via the Automated Budget and Evaluation System of Texas (ABEST) and the PDF file submitted via the LBB Document Submission application are identical.

Additionally, should it become likely at any time that unexpended balances will accrue for any account, the LBB and the Governor's office will be notified in writing in accordance with Article IX, Section 7.01 (2016-17 GAA).

Chief Justice

James T. Worthen
Signature

James T. Worthen
Chief Justice
August 12, 2026

Clerk of Court

Katrina McClenny
Signature

Katrina McClenny
Clerk of the Court
August 12, 2026

Budget Overview - Biennial Amounts
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

232 Twelfth Court of Appeals District, Tyler
Appropriation Years: 2028-29

	GENERAL REVENUE FUNDS		GR DEDICATED		FEDERAL FUNDS		OTHER FUNDS		ALL FUNDS		EXCEPTIONAL ITEM FUNDS
	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2028-29
Goal: 1. Appellate Court Operations											
1.1.1. Appellate Court Operations	3,367,412	3,228,076					8,000	8,000	3,375,412	3,236,076	1,134,989
1.1.2. Appellate Justice Salaries	1,277,150	1,277,150					184,900	184,900	1,462,050	1,462,050	
Total, Goal	4,644,562	4,505,226					192,900	192,900	4,837,462	4,698,126	1,134,989
Total, Agency	4,644,562	4,505,226					192,900	192,900	4,837,462	4,698,126	1,134,989
Total FTEs									14.0	14.0	3.0

2.A. Summary of Base Request by Strategy

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90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

232 Twelfth Court of Appeals District, Tyler

Goal / Objective / STRATEGY	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
1 Appellate Court Operations					
1 Appellate Court Operations					
1 APPELLATE COURT OPERATIONS	1,533,336	1,687,706	1,687,706	1,618,038	1,618,038
2 APPELLATE JUSTICE SALARIES	558,488	731,025	731,025	731,025	731,025
TOTAL, GOAL 1	\$2,091,824	\$2,418,731	\$2,418,731	\$2,349,063	\$2,349,063
TOTAL, AGENCY STRATEGY REQUEST	\$2,091,824	\$2,418,731	\$2,418,731	\$2,349,063	\$2,349,063
TOTAL, AGENCY RIDER APPROPRIATIONS REQUEST*				\$0	\$0
GRAND TOTAL, AGENCY REQUEST	\$2,091,824	\$2,418,731	\$2,418,731	\$2,349,063	\$2,349,063

2.A. Summary of Base Request by Strategy

8/11/2026 3:11:44PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

232 Twelfth Court of Appeals District, Tyler

Goal / Objective / STRATEGY	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>METHOD OF FINANCING:</u>					
General Revenue Funds:					
1 General Revenue Fund	2,017,415	2,322,281	2,322,281	2,252,613	2,252,613
SUBTOTAL	\$2,017,415	\$2,322,281	\$2,322,281	\$2,252,613	\$2,252,613
Other Funds:					
573 Judicial Fund	69,338	92,450	92,450	92,450	92,450
666 Appropriated Receipts	5,071	4,000	4,000	4,000	4,000
SUBTOTAL	\$74,409	\$96,450	\$96,450	\$96,450	\$96,450
TOTAL, METHOD OF FINANCING	\$2,091,824	\$2,418,731	\$2,418,731	\$2,349,063	\$2,349,063

*Rider appropriations for the historical years are included in the strategy amounts.

2.B. Summary of Base Request by Method of Finance

8/11/2026 3:11:44PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code:	232	Agency name:	Twelfth Court of Appeals District, Tyler			
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>GENERAL REVENUE</u>						
<u>1</u>	General Revenue Fund					
	<i>REGULAR APPROPRIATIONS</i>					
	Regular Appropriations from MOF Table (2024-25 GAA)	\$2,019,703	\$0	\$0	\$0	\$0
	Regular Appropriations from MOF Table (2026-27 GAA)	\$0	\$2,111,546	\$2,111,546	\$0	\$0
	Regular Appropriations from MOF Table (2028-29) GAA)	\$0	\$0	\$0	\$2,252,613	\$2,252,613
	<i>RIDER APPROPRIATION</i>					
	Art. IX Sec. 18.83, Contingency for SB 293	\$0	\$149,575	\$149,575	\$0	\$0
	<i>TRANSFERS</i>					
	SB 1, 89th Leg., R.S., Art IX, Sec. 17.15	\$0	\$61,160	\$61,160	\$0	\$0
	Comments: Attorney Salaries - 6% Increase					
	<i>LAPSED APPROPRIATIONS</i>					

2.B. Summary of Base Request by Method of Finance

8/11/2026 3:11:44PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 232		Agency name: Twelfth Court of Appeals District, Tyler				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>GENERAL REVENUE</u>						
HB 3461, 88th Leg, Regular Session		\$(2,288)	\$0	\$0	\$0	\$0
TOTAL,	General Revenue Fund	\$2,017,415	\$2,322,281	\$2,322,281	\$2,252,613	\$2,252,613
TOTAL, ALL	GENERAL REVENUE	\$2,017,415	\$2,322,281	\$2,322,281	\$2,252,613	\$2,252,613
<u>OTHER FUNDS</u>						
<u>573</u>	Judicial Fund No. 573					
REGULAR APPROPRIATIONS						
Regular Appropriations from MOF Table (2024-25 GAA)		\$92,450	\$0	\$0	\$0	\$0
Regular Appropriations from MOF Table (2026-27 GAA)		\$0	\$92,450	\$92,450	\$0	\$0
Regular Appropriations from MOF Table (2028-29 GAA)		\$0	\$0	\$0	\$92,450	\$92,450
LAPSED APPROPRIATIONS						

2.B. Summary of Base Request by Method of Finance

8/11/2026 3:11:44PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 232		Agency name: Twelfth Court of Appeals District, Tyler				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>OTHER FUNDS</u>						
Regular Appropriations from MOF Table (2024-25 GAA)		\$(23,112)	\$0	\$0	\$0	\$0
TOTAL,	Judicial Fund No. 573	\$69,338	\$92,450	\$92,450	\$92,450	\$92,450
<u>666</u> Appropriated Receipts						
<i>REGULAR APPROPRIATIONS</i>						
Regular Appropriations from MOF Table (2024-25 GAA)		\$4,000	\$0	\$0	\$0	\$0
Regular Appropriations from MOF Table (2026-27 GAA)		\$0	\$4,000	\$4,000	\$0	\$0
Regular Appropriations from MOF Table (2028-29 GAA)		\$0	\$0	\$0	\$4,000	\$4,000
<i>RIDER APPROPRIATION</i>						
Art IX, Sec 8.02, Reimbursements and Payments (2024-25 GAA)		\$1,071	\$0	\$0	\$0	\$0

2.B. Summary of Base Request by Method of Finance

8/11/2026 3:11:44PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code:	232	Agency name:	Twelfth Court of Appeals District, Tyler			
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>OTHER FUNDS</u>						
TOTAL, Appropriated Receipts		\$5,071	\$4,000	\$4,000	\$4,000	\$4,000
TOTAL, ALL OTHER FUNDS		\$74,409	\$96,450	\$96,450	\$96,450	\$96,450
GRAND TOTAL		\$2,091,824	\$2,418,731	\$2,418,731	\$2,349,063	\$2,349,063
FULL-TIME-EQUIVALENT POSITIONS						
REGULAR APPROPRIATIONS						
Regular Appropriations from MOF Table (2024-25 GAA)		15.0	0.0	0.0	0.0	0.0
Regular Appropriations from MOF Table (2026-27 GAA)		0.0	14.0	14.0	0.0	0.0
Regular Appropriations from MOF Table (2028-29 GAA)		0.0	0.0	0.0	14.0	14.0
UNAUTHORIZED NUMBER OVER (BELOW) CAP						
Unauthorized number over (below) cap		(1.0)	0.0	0.0	0.0	0.0
TOTAL, ADJUSTED FTES		14.0	14.0	14.0	14.0	14.0

2.B. Summary of Base Request by Method of Finance

8/11/2026 3:11:44PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: **232**

Agency name: **Twelfth Court of Appeals District, Tyler**

METHOD OF FINANCING

Exp 2025

Est 2026

Bud 2027

Req 2028

Req 2029

**NUMBER OF 100% FEDERALLY
FUNDED FTEs**

2.C. Summary of Base Request by Object of Expense

8/11/2026 3:11:45PM

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)**232 Twelfth Court of Appeals District, Tyler**

OBJECT OF EXPENSE	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
1001 SALARIES AND WAGES	\$1,895,312	\$2,319,144	\$2,319,144	\$2,222,283	\$2,222,283
1002 OTHER PERSONNEL COSTS	\$129,074	\$47,998	\$47,998	\$38,170	\$38,170
2003 CONSUMABLE SUPPLIES	\$4,001	\$5,000	\$5,000	\$4,000	\$4,000
2004 UTILITIES	\$4,396	\$4,500	\$4,500	\$5,000	\$5,000
2005 TRAVEL	\$10,935	\$1,500	\$1,500	\$31,690	\$31,690
2007 RENT - MACHINE AND OTHER	\$250	\$4,544	\$4,544	\$1,000	\$1,000
2009 OTHER OPERATING EXPENSE	\$47,856	\$36,045	\$36,045	\$46,920	\$46,920
OOE Total (Excluding Riders)	\$2,091,824	\$2,418,731	\$2,418,731	\$2,349,063	\$2,349,063
OOE Total (Riders)					
Grand Total	\$2,091,824	\$2,418,731	\$2,418,731	\$2,349,063	\$2,349,063

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

Agency Code: 232 Agency: Twelfth Court of Appeals District, Tyler

BASE REQUEST STRATEGY: 1-1-1 Appellate Court Operations

Code	Type of Expense	Expended	Estimated	Budgeted	Requested	Requested
1	Consumable Supplies	\$4,001	\$5,000	\$5,000	\$4,000	\$4,000
4	Travel	10,935	1,500	1,500	31,690	31,690
20	Rental & Leases	250	4,544	4,544	1,000	1,000
51	Other Operating Expenses	42,286	32,125	32,125	43,000	43,000
80	Utilities	4,396	4,500	4,500	5,000	5,000
Total, Operating Costs		\$61,868	\$47,669	\$47,669	\$84,690	\$84,690

2.D. Summary of Base Request Objective Outcomes
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation system of Texas (ABEST)

8/11/2026 3:11:45PM

232 Twelfth Court of Appeals District, Tyler					
Goal/ Objective / Outcome	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
1 Appellate Court Operations					
1 Appellate Court Operations					
KEY 1 Clearance Rate					
	100.00%	100.00%	100.00%	100.00%	100.00%
KEY 2 Percentage of Cases Under Submission for Less Than One Year					
	100.00%	100.00%	100.00%	100.00%	100.00%
KEY 3 Percentage of Cases Pending for Less Than Two Years					
	100.00%	100.00%	100.00%	100.00%	100.00%

2.E. Summary of Exceptional Items Request
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/11/2026
TIME : 3:11:46PM

Agency code: 232

Agency name: Twelfth Court of Appeals District, Tyler

		2028			2029			Biennium	
Priority	Item	GR and GR/GR Dedicated	All Funds	FTEs	GR and GR Dedicated	All Funds	FTEs	GR and GR Dedicated	All Funds
1	Restore 3% Budget Cut	\$69,668	\$69,668		\$69,669	\$69,669		\$139,337	\$139,337
2	Fully Staff the Court of Appeals	\$369,095	\$369,095	3.0	\$359,195	\$359,195	3.0	\$728,290	\$728,290
3	Recruit & Retain Staff	\$131,705	\$131,705		\$135,657	\$135,657		\$267,362	\$267,362
Total, Exceptional Items Request		\$570,468	\$570,468	3.0	\$564,521	\$564,521	3.0	\$1,134,989	\$1,134,989
Method of Financing									
	General Revenue	\$570,468	\$570,468		\$564,521	\$564,521		\$1,134,989	\$1,134,989
	General Revenue - Dedicated								
	Federal Funds								
	Other Funds								
		\$570,468	\$570,468		\$564,521	\$564,521		\$1,134,989	\$1,134,989
Full Time Equivalent Positions				3.0				3.0	
Number of 100% Federally Funded FTEs									

2.F. Summary of Total Request by Strategy
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE : 8/11/2026
TIME : 3:11:46PM

Agency code: 232	Agency name: Twelfth Court of Appeals District, Tyler					
Goal/Objective/STRATEGY	Base 2028	Base 2029	Exceptional 2028	Exceptional 2029	Total Request 2028	Total Request 2029
1 Appellate Court Operations						
1 <i>Appellate Court Operations</i>						
1 APPELLATE COURT OPERATIONS	\$1,618,038	\$1,618,038	\$570,468	\$564,521	\$2,188,506	\$2,182,559
2 APPELLATE JUSTICE SALARIES	731,025	731,025	0	0	731,025	731,025
TOTAL, GOAL 1	\$2,349,063	\$2,349,063	\$570,468	\$564,521	\$2,919,531	\$2,913,584
TOTAL, AGENCY STRATEGY REQUEST	\$2,349,063	\$2,349,063	\$570,468	\$564,521	\$2,919,531	\$2,913,584
TOTAL, AGENCY RIDER APPROPRIATIONS REQUEST						
GRAND TOTAL, AGENCY REQUEST	\$2,349,063	\$2,349,063	\$570,468	\$564,521	\$2,919,531	\$2,913,584

2.F. Summary of Total Request by Strategy
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE : 8/11/2026
TIME : 3:11:46PM

Agency code: 232		Agency name: Twelfth Court of Appeals District, Tyler					
Goal/Objective/STRATEGY		Base 2028	Base 2029	Exceptional 2028	Exceptional 2029	Total Request 2028	Total Request 2029
General Revenue Funds:							
1	General Revenue Fund	\$2,252,613	\$2,252,613	\$570,468	\$564,521	\$2,823,081	\$2,817,134
		\$2,252,613	\$2,252,613	\$570,468	\$564,521	\$2,823,081	\$2,817,134
Other Funds:							
573	Judicial Fund	92,450	92,450	0	0	92,450	92,450
666	Appropriated Receipts	4,000	4,000	0	0	4,000	4,000
		\$96,450	\$96,450	\$0	\$0	\$96,450	\$96,450
TOTAL, METHOD OF FINANCING		\$2,349,063	\$2,349,063	\$570,468	\$564,521	\$2,919,531	\$2,913,584
FULL TIME EQUIVALENT POSITIONS		14.0	14.0	3.0	3.0	17.0	17.0

2.G. Summary of Total Request Objective Outcomes
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation system of Texas (ABEST)

Date : 8/11/2026
 Time: 3:11:46PM

Agency code: **232** Agency name: **Twelfth Court of Appeals District, Tyler**

Goal/ Objective / Outcome

		BL 2028	BL 2029	Excp 2028	Excp 2029	Total Request 2028	Total Request 2029
1	Appellate Court Operations						
1	Appellate Court Operations						
KEY	1 Clearance Rate						
		100.00%	100.00%	100.00%	100.00%	100.00%	100.00%
KEY	2 Percentage of Cases Under Submission for Less Than One Year						
		100.00%	100.00%	100.00%	100.00%	100.00%	100.00%
KEY	3 Percentage of Cases Pending for Less Than Two Years						
		100.00%	100.00%	100.00%	100.00%	100.00%	100.00%

232 Twelfth Court of Appeals District, Tyler

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
Output Measures:						
1	Number of Civil Cases Disposed	135.00	243.00	200.00	200.00	200.00
2	Number of Criminal Cases Disposed	175.00	211.00	195.00	195.00	195.00
Explanatory/Input Measures:						
1	Number of Civil Cases Filed	142.00	193.00	200.00	200.00	200.00
2	Number of Criminal Cases Filed	148.00	185.00	195.00	195.00	195.00
3	Number of Cases Transferred in	11.00	76.00	0.00	0.00	0.00
4	Number of Cases Transferred out	2.00	0.00	0.00	0.00	0.00
Objects of Expense:						
1001	SALARIES AND WAGES	\$1,361,024	\$1,612,669	\$1,612,669	\$1,515,808	\$1,515,808
1002	OTHER PERSONNEL COSTS	\$110,444	\$27,368	\$27,368	\$17,540	\$17,540
2003	CONSUMABLE SUPPLIES	\$4,001	\$5,000	\$5,000	\$4,000	\$4,000
2004	UTILITIES	\$4,396	\$4,500	\$4,500	\$5,000	\$5,000
2005	TRAVEL	\$10,935	\$1,500	\$1,500	\$31,690	\$31,690
2007	RENT - MACHINE AND OTHER	\$250	\$4,544	\$4,544	\$1,000	\$1,000
2009	OTHER OPERATING EXPENSE	\$42,286	\$32,125	\$32,125	\$43,000	\$43,000
TOTAL, OBJECT OF EXPENSE		\$1,533,336	\$1,687,706	\$1,687,706	\$1,618,038	\$1,618,038

232 Twelfth Court of Appeals District, Tyler

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
Method of Financing:						
1	General Revenue Fund	\$1,528,265	\$1,683,706	\$1,683,706	\$1,614,038	\$1,614,038
SUBTOTAL, MOF (GENERAL REVENUE FUNDS)		\$1,528,265	\$1,683,706	\$1,683,706	\$1,614,038	\$1,614,038
Method of Financing:						
666	Appropriated Receipts	\$5,071	\$4,000	\$4,000	\$4,000	\$4,000
SUBTOTAL, MOF (OTHER FUNDS)		\$5,071	\$4,000	\$4,000	\$4,000	\$4,000
TOTAL, METHOD OF FINANCE (INCLUDING RIDERS)					\$1,618,038	\$1,618,038
TOTAL, METHOD OF FINANCE (EXCLUDING RIDERS)		\$1,533,336	\$1,687,706	\$1,687,706	\$1,618,038	\$1,618,038
FULL TIME EQUIVALENT POSITIONS:		11.0	11.0	11.0	11.0	11.0

STRATEGY DESCRIPTION AND JUSTIFICATION:

The Twelfth Court of Appeals was created in 1963 by an Act of the 58th Legislature, H.B. 68. The Court has intermediate appellate jurisdiction in civil cases in which the judgment rendered exceeds \$100, exclusive of costs, and other civil proceedings as provided by law, and in criminal cases, except in post-conviction writs of habeas corpus and where the death penalty has been imposed. The Court has jurisdiction over seventeen (17) counties.

232 Twelfth Court of Appeals District, Tyler

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
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EXTERNAL/INTERNAL FACTORS IMPACTING STRATEGY:

The Twelfth Court of Appeals is a constitutional state entity comprised of three elected justices assisted by a highly specialized and well-trained staff of full time employees. The Court must be able to carry out its constitutional and statutory responsibilities to appropriately serve the people in our 17- county jurisdiction in an effective and efficient manner. To do this, the Court must be able to attract and retain knowledgeable, highly trained, and professional staff members in both legal and non-legal positions. Analyzing cases on appeal from a court's perspective and assisting with court opinions are skills which take time to develop. Loss of experienced staff members, especially staff attorneys, creates difficulties in the timely processing of and disposing of appeals. New attorneys, even if experienced, take precious time to develop the skills required of staff attorneys doing appellate work. Our cases have become more complex, as generally, easier cases do not reach us because they have been resolved through alternative dispute resolution. Experienced, qualified staff attorneys are essential for effective analysis and briefing of complex issues, as well as for assistance in legal research and drafting opinions. This ability to attract and retain experienced appellate attorneys play a vital role in the Courts' ability to fulfill their core function of timely processing and disposing of appeals while maintaining the high quality of justice to which the citizens of Texas are entitled.

EXPLANATION OF BIENNIAL CHANGE (includes Rider amounts):

<u>STRATEGY BIENNIAL TOTAL - ALL FUNDS</u>		<u>BIENNIAL CHANGE</u>	<u>EXPLANATION OF BIENNIAL CHANGE</u>	
Base Spending (Est 2026 + Bud 2027)	Baseline Request (BL 2028 + BL 2029)		\$ Amount	Explanation(s) of Amount (must specify MOFs and FTEs)
\$3,375,412	\$3,236,076	\$(139,336)	\$(139,336)	To effectuate the three percent reduction required in the General Revenue-Related limits establishing each agency's 2028-29 base amount, per Governor's policy letter, includes the loss of zero FTE.
			\$(139,336)	Total of Explanation of Biennial Change

232 Twelfth Court of Appeals District, Tyler

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 2 Appellate Justice Salaries. Estimated and Nontransferable

Service Categories:

Service: NA Income: NA Age: NA

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
Objects of Expense:						
1001	SALARIES AND WAGES	\$534,288	\$706,475	\$706,475	\$706,475	\$706,475
1002	OTHER PERSONNEL COSTS	\$18,630	\$20,630	\$20,630	\$20,630	\$20,630
2009	OTHER OPERATING EXPENSE	\$5,570	\$3,920	\$3,920	\$3,920	\$3,920
TOTAL, OBJECT OF EXPENSE		\$558,488	\$731,025	\$731,025	\$731,025	\$731,025
Method of Financing:						
1	General Revenue Fund	\$489,150	\$638,575	\$638,575	\$638,575	\$638,575
SUBTOTAL, MOF (GENERAL REVENUE FUNDS)		\$489,150	\$638,575	\$638,575	\$638,575	\$638,575
Method of Financing:						
573	Judicial Fund	\$69,338	\$92,450	\$92,450	\$92,450	\$92,450
SUBTOTAL, MOF (OTHER FUNDS)		\$69,338	\$92,450	\$92,450	\$92,450	\$92,450
TOTAL, METHOD OF FINANCE (INCLUDING RIDERS)					\$731,025	\$731,025
TOTAL, METHOD OF FINANCE (EXCLUDING RIDERS)		\$558,488	\$731,025	\$731,025	\$731,025	\$731,025
FULL TIME EQUIVALENT POSITIONS:		3.0	3.0	3.0	3.0	3.0

232 Twelfth Court of Appeals District, Tyler

GOAL:	1	Appellate Court Operations	
OBJECTIVE:	1	Appellate Court Operations	Service Categories:
STRATEGY:	2	Appellate Justice Salaries. Estimated and Nontransferable	Service: NA Income: NA Age: NA

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
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STRATEGY DESCRIPTION AND JUSTIFICATION:

The Twelfth Court of Appeals was created in 1963 by an Act of the 58th Legislature, H.B. 68. The Court has intermediate appellate jurisdiction in civil cases in which the judgment rendered exceeds \$100, exclusive of costs, and other civil proceedings as provided by law, and in criminal cases, except in post-conviction writs of habeas corpus and where the death penalty has been imposed. The Court has jurisdiction over seventeen (17) counties.

EXTERNAL/INTERNAL FACTORS IMPACTING STRATEGY:

The Twelfth Court of Appeals is a constitutional state entity comprised of three elected justices assisted by a highly specialized and well-trained staff of full time employees. The Court must be able to carry out its constitutional and statutory responsibilities to appropriately serve the people in our 17- county jurisdiction in an effective and efficient manner. To do this, the Court must be able to attract and retain knowledgeable, highly trained, and professional staff members in both legal and non-legal positions. Analyzing cases on appeal from a court's perspective and assisting with court opinions are skills which take time to develop. Loss of experienced staff members, especially staff attorneys, creates difficulties in the timely processing of and disposing of appeals. New attorneys, even if experienced, take precious time to develop the skills required of staff attorneys doing appellate work. Our cases have become more complex, as generally, easier cases do not reach us because they have been resolved through alternative dispute resolution. Experienced, qualified staff attorneys are essential for effective analysis and briefing of complex issues, as well as for assistance in legal research and drafting opinions. This ability to attract and retain experienced appellate attorneys play a vital role in the Courts' ability to fulfill their core function of timely processing and disposing of appeals while maintaining the high quality of justice to which the citizens of Texas are entitled.

232 Twelfth Court of Appeals District, Tyler

GOAL: 1 Appellate Court Operations
 OBJECTIVE: 1 Appellate Court Operations
 STRATEGY: 2 Appellate Justice Salaries. Estimated and Nontransferable

Service Categories:
 Service: NA Income: NA Age: NA

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
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EXPLANATION OF BIENNIAL CHANGE (includes Rider amounts):

<u>STRATEGY BIENNIAL TOTAL - ALL FUNDS</u>		<u>BIENNIAL CHANGE</u>	<u>EXPLANATION OF BIENNIAL CHANGE</u>	
<u>Base Spending (Est 2026 + Bud 2027)</u>	<u>Baseline Request (BL 2028 + BL 2029)</u>		<u>\$ Amount</u>	<u>Explanation(s) of Amount (must specify MOFs and FTEs)</u>
\$1,462,050	\$1,462,050	\$0		
			\$0	Total of Explanation of Biennial Change

SUMMARY TOTALS:

OBJECTS OF EXPENSE:	\$2,091,824	\$2,418,731	\$2,418,731	\$2,349,063	\$2,349,063
METHODS OF FINANCE (INCLUDING RIDERS):				\$2,349,063	\$2,349,063
METHODS OF FINANCE (EXCLUDING RIDERS):	\$2,091,824	\$2,418,731	\$2,418,731	\$2,349,063	\$2,349,063
FULL TIME EQUIVALENT POSITIONS:	14.0	14.0	14.0	14.0	14.0

3.B. Rider Revisions and Additions Request

Agency Code: 232	Agency Name: 12 th Court of Appeals, District	Prepared By: Katrina McClenny	Date: 8/11/26	Request Level: Baseline
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Current Rider Number	Page Number in 2026–2027 GAA	Proposed Rider Language
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2, 3, 4, 6,
7, 8

No changes recommended for Riders 2, 3, 4, 6, 7, and 8

5

IV-43

Sec. 5. Interagency Contracts for Assigned Judges for Appellate Courts. Out of funds appropriated in this Article to Strategies A.1.1., Appellate Court Operations, the Supreme Court of Texas, the Court of Criminal Appeals, or any of the 15 Courts of Appeals may enter into a contract with the Office of the Comptroller for fiscal years 2028 and 2029, for the purpose of reimbursing the Comptroller for amounts expended for judges assigned under Chapter 74, Government Code to hear cases of the appellate courts. It is the intent of the Legislature that any amounts reimbursed under this contract for judges assigned to the appellate courts are in addition to amounts appropriated for the use of assigned judges in Strategy A.1.3. Visiting Judges – Appellate in the Judiciary Section, Comptroller’s Department.

Adjusting the years in the rider for the 2028-2029 biennium.

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IV-44

Sec. 9. Unexpended Balance Authority. Any unexpended and unobligated balances remaining in non-estimated strategies at the Supreme Court of Texas, Court of Criminal Appeals, 15 Courts of Appeals, Office of Court Administration, Office of Capital and Forensic Writs, Office of the State Prosecuting Attorney, State Commission on Judicial Conduct, and State Law Library as of August 31, 2028, are appropriated to the respective court or agency for the fiscal year beginning September 1, 2028, for the same purpose.

Updating the rider to adjust the years for the 2028-2029 biennium.

701

IV

Mileage Reimbursement for Appellate Court Justices - Appellate court justices and judges that travel for official state business in a personal vehicle should be exempt from the requirement to complete a comparison worksheet showing that mileage reimbursement for travel in a personal vehicle is more cost-effective than the use of a rental car (as is currently the case for children's court and business court state who travel regularly for official state business). (See Art. IV Appropriation for OCA, Texas Judicial Council-Item No. 7 entitled "Mileage Reimbursement for Children's Courts and Business Court Staff).

Requesting addition of the cost comparison exemption for the appellate courts that is afforded to the other court personnel within the judiciary.

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/11/2026
TIME: 3:11:51PM

Agency code: 232 Agency name: Twelfth Court of Appeals District, Tyler

CODE	DESCRIPTION		Excp 2028	Excp 2029
	Item Name:	Restore the 3% Budget Cut		
	Item Priority:	1		
	IT Component:	No		
	Anticipated Out-year Costs:	No		
	Involve Contracts > \$50,000:	No		
	Includes Funding for the Following Strategy or Strategies:	01-01-01 Appellate Court Operations		
OBJECTS OF EXPENSE:				
1001	SALARIES AND WAGES		68,583	68,584
1002	OTHER PERSONNEL COSTS		40	40
2009	OTHER OPERATING EXPENSE		1,045	1,045
	TOTAL, OBJECT OF EXPENSE		\$69,668	\$69,669
METHOD OF FINANCING:				
1	General Revenue Fund		69,668	69,669
	TOTAL, METHOD OF FINANCING		\$69,668	\$69,669

DESCRIPTION / JUSTIFICATION:

To address the highly negative and disproportionate impact of the required 3% reduction on the courts' funding, especially in light of the substantial increase in new case filings in Fiscal Year '26, the courts of appeals respectfully submit Exceptional Item #1 requesting the restoration of the 3% budget reduction so that their baseline funding will be the Fiscal Year 2027 budgeted levels. The 12th Court of Appeals therefore respectfully requests restoration to General Revenue funding in the amount of \$139,337.00.

EXTERNAL/INTERNAL FACTORS:

See charts in administrative statement

PCLS TRACKING KEY:

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/11/2026
TIME: 3:11:51PM

Agency code: 232 Agency name: Twelfth Court of Appeals District, Tyler

CODE	DESCRIPTION			Excp 2028	Excp 2029
		Item Name:	Additional Full-time Staff Attorneys and Administrative Clerk due to the Substantial Increase in new case filings.		
		Item Priority:	2		
		IT Component:	No		
		Anticipated Out-year Costs:	No		
		Involve Contracts > \$50,000:	No		
	Includes Funding for the Following Strategy or Strategies:	01-01-01	Appellate Court Operations		
OBJECTS OF EXPENSE:					
1001	SALARIES AND WAGES			349,000	349,000
2005	TRAVEL			4,500	4,500
2009	OTHER OPERATING EXPENSE			15,595	5,695
TOTAL, OBJECT OF EXPENSE				\$369,095	\$359,195
METHOD OF FINANCING:					
1	General Revenue Fund			369,095	359,195
TOTAL, METHOD OF FINANCING				\$369,095	\$359,195
FULL-TIME EQUIVALENT POSITIONS (FTE):				3.00	3.00

DESCRIPTION / JUSTIFICATION:

Due to the substantial increase in new case filings that the courts of appeals are experiencing in FY '26, and which are expected to continue for the foreseeable future, and based on the template of same-size courts above, the Eleventh Court of Appeals respectfully submits its Exceptional Item # 2 in which it requests funding for 4 additional full time staff attorneys.

EXTERNAL/INTERNAL FACTORS:

See charts in administrative statement

PCLS TRACKING KEY:

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/11/2026
TIME: 3:11:51PM

Agency code: 232 Agency name: Twelfth Court of Appeals District, Tyler

CODE	DESCRIPTION	Excp 2028	Excp 2029
	Item Name: Recruitment and Retention of Judicial-Branch staff		
	Item Priority: 3		
	IT Component: No		
	Anticipated Out-year Costs: No		
	Involve Contracts > \$50,000: No		
	Includes Funding for the Following Strategy or Strategies: 01-01-01 Appellate Court Operations		
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	129,759	133,652
2009	OTHER OPERATING EXPENSE	1,946	2,005
	TOTAL, OBJECT OF EXPENSE	\$131,705	\$135,657
METHOD OF FINANCING:			
1	General Revenue Fund	131,705	135,657
	TOTAL, METHOD OF FINANCING	\$131,705	\$135,657

DESCRIPTION / JUSTIFICATION:

Recruiting and retaining excellent judicial-branch staff is essential to the fair and efficient administration of justice in Texas. The rising cost of living combined with the draw of more lucrative employment at other government agencies and the private sector continue to create staffing challenges for the courts. The courts of appeals join with the Supreme Court of Texas and the other Article IV courts and agencies in requesting a 3% annual increase in staff pay throughout the Article IV courts and agencies in Fiscal Year '28 and also in Fiscal Year '29 to help maintain the judicial branch's position in the competitive market for talented, qualified, and experienced lawyers and other staff. The Eleventh Court of Appeals, in conjunction with the rest of the judicial branch, therefore requests a 3% increase in staff salaries in Fiscal Year '28 and an additional 3% increase in Fiscal Year '29.

EXTERNAL/INTERNAL FACTORS:

See charts in administrative statement

PCLS TRACKING KEY:

4.B. Exceptional Items Strategy Allocation Schedule

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/11/2026

TIME: 3:11:51PM

Agency code:	232	Agency name:	Twelfth Court of Appeals District, Tyler		
Code	Description			Excp 2028	Excp 2029
Item Name:	Restore the 3% Budget Cut				
Allocation to Strategy:	1-1-1	Appellate Court Operations			
STRATEGY IMPACT ON OUTCOME MEASURES:					
1	Clearance Rate			100.00%	100.00%
OBJECTS OF EXPENSE:					
1001	SALARIES AND WAGES			68,583	68,584
1002	OTHER PERSONNEL COSTS			40	40
2009	OTHER OPERATING EXPENSE			1,045	1,045
TOTAL, OBJECT OF EXPENSE				\$69,668	\$69,669
METHOD OF FINANCING:					
1	General Revenue Fund			69,668	69,669
TOTAL, METHOD OF FINANCING				\$69,668	\$69,669

4.B. Exceptional Items Strategy Allocation Schedule

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/11/2026

TIME: 3:11:51PM

Agency code: 232

Agency name: Twelfth Court of Appeals District, Tyler

Code	Description	Excp 2028	Excp 2029
Item Name:		Additional Full-time Staff Attorneys and Administrative Clerk due to the Substantial Increase in new case filings.	
Allocation to Strategy:		1-1-1	Appellate Court Operations
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	349,000	349,000
2005	TRAVEL	4,500	4,500
2009	OTHER OPERATING EXPENSE	15,595	5,695
TOTAL, OBJECT OF EXPENSE		\$369,095	\$359,195
METHOD OF FINANCING:			
1	General Revenue Fund	369,095	359,195
TOTAL, METHOD OF FINANCING		\$369,095	\$359,195
FULL-TIME EQUIVALENT POSITIONS (FTE):		3.0	3.0

4.B. Exceptional Items Strategy Allocation Schedule

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/11/2026

TIME: 3:11:51PM

Agency code: **232** Agency name: **Twelfth Court of Appeals District, Tyler**

Code	Description	Excp 2028	Excp 2029
Item Name:		Recruitment and Retention of Judicial-Branch staff	
Allocation to Strategy:		1-1-1 Appellate Court Operations	
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	129,759	133,652
2009	OTHER OPERATING EXPENSE	1,946	2,005
TOTAL, OBJECT OF EXPENSE		\$131,705	\$135,657
METHOD OF FINANCING:			
1	General Revenue Fund	131,705	135,657
TOTAL, METHOD OF FINANCING		\$131,705	\$135,657

4.C. Exceptional Items Strategy Request
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/11/2026
TIME: 3:11:52PM

Agency Code: **232** Agency name: **Twelfth Court of Appeals District, Tyler**

GOAL: 1 Appellate Court Operations

OBJECTIVE: 1 Appellate Court Operations

STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE DESCRIPTION	Excp 2028	Excp 2029
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STRATEGY IMPACT ON OUTCOME MEASURES:

<u>1</u> Clearance Rate	100.00 %	100.00 %
<u>2</u> Percentage of Cases Under Submission for Less Than One Year	100.00 %	100.00 %
<u>3</u> Percentage of Cases Pending for Less Than Two Years	100.00 %	100.00 %

OBJECTS OF EXPENSE:

1001 SALARIES AND WAGES	547,342	551,236
1002 OTHER PERSONNEL COSTS	40	40
2005 TRAVEL	4,500	4,500
2009 OTHER OPERATING EXPENSE	18,586	8,745
Total, Objects of Expense	\$570,468	\$564,521

METHOD OF FINANCING:

1 General Revenue Fund	570,468	564,521
Total, Method of Finance	\$570,468	\$564,521

FULL-TIME EQUIVALENT POSITIONS (FTE):	3.0	3.0
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EXCEPTIONAL ITEM(S) INCLUDED IN STRATEGY:

Restore the 3% Budget Cut

Additional Full-time Staff Attorneys and Administrative Clerk due to the Substantial Increase in new case filings.

Recruitment and Retention of Judicial-Branch staff

4.C. Exceptional Items Strategy Request
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/11/2026
TIME: 3:11:52PM

Agency Code: **232** Agency name: **Twelfth Court of Appeals District, Tyler**

GOAL: 1 Appellate Court Operations

OBJECTIVE: 1 Appellate Court Operations

Service Categories:

STRATEGY: 2 Appellate Justice Salaries. Estimated and Nontransferable

Service: NA Income: NA Age: NA

CODE DESCRIPTION	Excp 2028	Excp 2029
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STRATEGY IMPACT ON OUTCOME MEASURES:

1 Clearance Rate	100.00 %	100.00 %
2 Percentage of Cases Under Submission for Less Than One Year	100.00 %	100.00 %
3 Percentage of Cases Pending for Less Than Two Years	100.00 %	100.00 %

6.A. Historically Underutilized Business Supporting Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

Date: 8/11/2026
Time: 3:11:52PM

Agency Code: 232 Agency: Twelfth Court of Appeals District, Tyler

COMPARISON TO STATEWIDE HUB PROCUREMENT GOALS

A. Fiscal Year - HUB Expenditure Information

Statewide HUB Goals	Procurement Category	% Goal	<u>HUB Expenditures FY 2024</u>			Total Expenditures FY 2024	% Goal	<u>HUB Expenditures FY 2025</u>			Total Expenditures FY 2025
			% Actual	Diff	Actual \$			% Actual	Diff	Actual \$	
21.1%	Commodities	21.1 %	85.7%	64.6%	\$2,800	\$3,268	21.1 %	26.7%	5.6%	\$534	\$1,998
	Total Expenditures		85.7%		\$2,800	\$3,268		26.7%		\$534	\$1,998

B. Assessment of Attainment of HUB Procurement Goals

Attainment:

Applicability:

Factors Affecting Attainment:

C. Good-Faith Efforts to Increase HUB Participation

Outreach Efforts and Mentor-Protégé Programs:

HUB Program Staffing:

Current and Future Good-Faith Efforts:

6.H. Estimated Total of All Agency Funds Outside the GAA Bill Pattern
Twelfth Court of Appeals

ESTIMATED GRAND TOTAL OF AGENCY FUNDS OUTSIDE THE 2028-29 GAA BILL PATTERN	\$ 219,225
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<u>Fund Name</u>	
Estimated Beginning Balance in FY 2026	\$136,700.00
Estimated Revenues FY 2026	\$69,825.00
Estimated Revenues FY 2027	\$ 70,500
FY 2026-27 Total	\$ 277,025
Estimated Beginning Balance in FY 2028	\$ 69,225
Estimated Revenues FY 2028	\$ 75,000
Estimated Revenues FY 2029	\$ 75,000
FY 2028-29 Total	\$ 219,225
Constitutional or Statutory Creation and Use of Funds:	
Section 22.2131 of the Texas Government Code provides that "the commissioners court of each county in the Twelfth Court of Appeals District, by order entered in its minutes, shall establish an appellate judicial system to assist the court of appeals for the county in the processing of appeals filed with the court of appeals from the county courts, statutory county courts, probate courts, and district courts." These funds shall be used to "establish and maintain a fund system to assist the Twelfth Court of Appeals District and any other court of appeals district that has an appellate judicial system in the county. The fund may not be used for any other purpose. " Added by Acts 2009, 81st Lge., R.S. Ch. 50, Sec.1, eff. September 1, 2009. Collections implemented at the county level on January 1, 2010.	
Method of Calculation and Revenue Assumptions:	
In accordance with the above referenced statute, the District and County Clerks of the various courts in the counties that compose the Twelfth Court of Appeals District are to collect and remit a \$5 filing fee on each civil suit filed in a county court, county court-at-law, probate court, or district court.	

General Revenue (GR) & General Revenue Dedicated (GR-D) Baseline

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/11/2026

TIME: 10:27:40AM

Agency code: 232				Agency name: Twelfth Court of Appeals District, Tyler				GR Baseline Request Limit = \$4,505,225				
Strategy/Strategy Option/Rider								GR-D Baseline Request Limit = \$0				
2028 Funds				2029 Funds				Biennial Cumulative GR		Biennial Cumulative Ded		Page #
FTEs	Total	GR	Ded	FTEs	Total	GR	Ded					
Strategy: 1 - 1 - 1	Appellate Court Operations											
11.0	1,521,588	1,517,588	0	11.0	1,521,588	1,517,588	0	3,035,176	0			
Strategy: 1 - 1 - 2	Appellate Justice Salaries. Estimated and Nontransferable											
3.0	731,025	638,575	0	3.0	731,025	638,575	0	4,312,326	0			
Excp Item: 1	Restore the 3% Budget Cut											
0.0	69,668	69,668	0	0.0	69,669	69,669	0	4,451,663	0			
Strategy Detail for Excp Item: 1												
Strategy: 1 - 1 - 1	Appellate Court Operations											
0.0	69,668	69,668	0	0.0	69,669	69,669	0					
14.0				14.0				*****GR Baseline Request Limit=\$4,505,225*****				
Excp Item: 2	Additional Full-time Staff Attorneys and Administrative Clerk due to the Substantial Increase in new case filings.											
3.0	369,095	369,095	0	3.0	359,195	359,195	0	5,179,953	0			
Strategy Detail for Excp Item: 2												
Strategy: 1 - 1 - 1	Appellate Court Operations											
3.0	369,095	369,095	0	3.0	359,195	359,195	0					
Excp Item: 3	Recruitment and Retention of Judicial-Branch staff											
0.0	131,705	131,705	0	0.0	135,657	135,657	0	5,447,315	0			
Strategy Detail for Excp Item: 3												
Strategy: 1 - 1 - 1	Appellate Court Operations											
0.0	131,705	131,705	0	0.0	135,657	135,657	0					
17.0	\$2,823,081	\$2,726,631	\$0	17.0	\$2,817,134	\$2,720,684	0					